2. Every person who is or is deemed to be a citizen of India shall continue to be such citizen, subject to the provisions of any law made by Parliament.

3. Parliament shall have the power to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship.

**CITIZENSHIP ACT, 1955**

The Citizenship Act (1955) provides for acquisition and loss of citizenship after the commencement of the Constitution.




Originally, the Citizenship Act (1955) also provided for the Commonwealth Citizenship. But, this provision was repealed by the Citizenship (Amendment) Act, 2003.

 **Acquisition of Citizenship**

The Citizenship Act of 1955 prescribes five ways of acquiring citizenship, viz, birth, descent, registration, naturalisation and incorporation of territory:

**1. By Birth** A person born in India on or after January 26, 1950 but before July 1, 1987 is a citizen of India by birth irrespective of the nationality of his/her parents.

A person born in India on or after July 1, 1987 but before December 3, 2004 is considered as a citizen of India only if either of his/her parents is a citizen of India at the time of his/her birth.

Further, those born in India on or after December 3, 2004 are considered citizens of India only if both of their parents are citizens of India or one of whose parents is a citizen of India and the other is not an illegal migrant at the time of their birth.

The children of foreign diplomats posted in India and enemy aliens cannot acquire Indian citizenship by birth.

**2. By Descent** A person born outside India on or after January 26, 1950 but before December 10, 1992 is a citizen of India by descent, if his/her father was a citizen of India at the time of his/her birth.

A person born outside India on or after December 10, 1992 is considered as a citizen of India if either of his/her parents is a citizen of India at the time of his/her birth.

From December 3, 2004 onwards, a person born outside India shall not be a citizen of India by descent, unless his/her birth is registered at an Indian consulate within one year of the date of birth or with the permission of the Central Government, after the expiry of the said period. An application, for registration of the birth of a minor child, to an Indian consulate shall be accompanied by an undertaking in writing from the parents of such minor child that he or she does not hold the passport of another country.

Further, a minor who is a citizen of India by virtue of descent and is also a citizen of any other country shall cease to be a citizen of India if he or she does not renounce the citizenship or nationality of another country within six months of his/her attaining full age.